

Tentative Rulings and Resolution Review Hearings
February 3, 2025
Department 63 (formerly Department 8)

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

FLORES VS. DADDARIO

Case Number: 24CV-0204188

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on January 2, 2025 for failure to timely serve pleadings on Defendant pursuant to California Rules of Court, Rule 3.110(b) and failure to timely prosecute. The Court notes that Plaintiff filed a Notice of Appeal for a judgment entered on February 25, 2025. Although February 25, 2025 is in the future, the Court will continue the matter in an abundance of caution while the Court waits for a response from the Court of Appeal. The matter is continued to **Tuesday, April 1, 2025 at 8:30 a.m. in Department 63** for hearing on the Order to Show Cause Re: Dismissal.

FLORES VS. MILLER

Case Number: 24CV-0204648

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on January 2, 2025 for failure to timely serve pleadings on Defendant pursuant to California Rules of Court, Rule 3.110(b) and failure to timely prosecute. The Court notes that Plaintiff filed a Notice of Appeal for a judgment entered on February 25, 2025. Although February 25, 2025 is in the future, the Court will continue the matter in an abundance of caution while the Court waits for a response from the Court of Appeal. The matter is continued to **Tuesday, April 1, 2025 at 8:30 a.m. in Department 63** for hearing on the Order to Show Cause Re: Dismissal.

FLORES VS. ADKINS

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FLORES VS. TAGGART

Case Number: 24CV-0204651

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MANGELS VS. RANDELL, ET AL.

Case Number: 23CV-0203674

Tentative Ruling on Motion for Summary Judgment and/or Summary Adjudication: Defendants Frank Randell and Kathleen Randell move for summary judgment or in the alternative, summary adjudication, on the Complaint filed by Plaintiff Gary Mangels on November 16, 2023. The Complaint contains two causes of action: 1. Specific Performance of Real Estate Contract and 2. Declaratory Relief. The motion is opposed by Plaintiff Gary Mangels.

The Court notes Defendants' objection to Plaintiff's Opposition filed on January 16, 2025, on the basis that it was untimely filed. An Amendment to CCP § 473c went into effect on January 1, 2025. "An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise." CCP § 437c(b)(2). Defendants did not articulate any prejudice caused by the two-day delay and the Court does not find any prejudice. Based on the amendment to CCP § 473c being very recent, the Court finds good cause to consider the opposition and will overrule the objection.

However, there is a deficiency with the evidence presented by Plaintiff. The Court notes that Plaintiff submitted two declarations in support of the Opposition: the Declaration of Jacob Wright and the Declaration of Gary Mangels. Both declarations do not comply with CCP § 2015.5 as they do not contain the statement, "I certify (or declare) under penalty of perjury that the foregoing is true and correct." A declaration that does not comply with CCP § 2015.5 is not sufficiently reliable to be admitted into evidence. *ViaView, Inc. v. Retzlaff* (2016) 1 Cal. App. 5th 198, 217.

The issue was not raised in the Reply and no objection was made by Defendants on the basis that Plaintiff and his counsel did not sign their declarations under penalty of perjury. As it appears that this issue can be easily remedied, the Court continues hearing on the motion to **Tuesday, February 18, 2025 at 8:30 a.m. in Department 63**. Should Plaintiff be able to provide verifications to the declarations, they must be filed no later than Friday, February 7, 2025. The Court will not allow any new facts or substantive changes to the declarations.

The Court notes that Defendants will likely object to the Court's intended course of action. The Court has considered the rights of both parties and concludes that it would be fundamentally unfair to not consider evidence in a dispositive motion for what appears to be a typographical or otherwise inadvertent error by counsel. The Court further notes that were the Court to exclude all of the evidence offered by Plaintiff based on the lack of verification, that a motion pursuant to CCP § 473(b) could be brought following the ruling. This would likely increase attorney fees for both parties and cause a delay of the March 18, 2025, trial date. The Court finds that providing Plaintiff the opportunity to correct the defect is in the interest of judicial economy, promotes the preference for judgments on the merits, and operates to the ultimate benefit of both parties.

An appearance is requested on today's calendar. The Court notes that the matter is scheduled for a Mandatory Settlement Conference at 1:30 p.m. today and the Court intends to discuss whether the Mandatory Settlement Conference will be going forward.

IN RE ALLEN

Case Number: 24PB-0032715

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Lakota Allen's claims from an automobile collision on June 5, 2023. The minor's mother, Brandy Lee Manso, was appointed as the minor's Guadian ad Litem on November 27, 2024. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition and Declaration of Janine A. Mitchell contain the necessary information. The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is thus needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court will ask counsel to voir dire Petitioner regarding the following: the terms of the settlement and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order and schedule a hearing for review regarding confirmation of deposit. **An appearance by the Petitioner and Petitioner's counsel of record is necessary on today's calendar.**

MASSETT VS. AMERICAN AUTOMOBILE ASSOCIATION CALIFORNIA STATE AUTOMOBILE ASSOCIATION

Case Number: 24CV-0206073

Tentative Ruling on Motion to Request an Immediate Hearing Before a Judge: Plaintiff Stacy Massett filed this motion on demand and appears to be seeking an immediate hearing to address Plaintiff's perceived misconduct by court clerks. Specifically, Plaintiff argues that the clerks have rejected Plaintiff's Requests for Entry of Default. The motion does comply with CRC 3.1112 and is therefore defective. The motion is **DENIED** without prejudice for being in an improper format and being procedurally defective. Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order.

The Court has reviewed the filings in this matter and concurs that there is no valid Proof of Service of Summons on file for either named Defendant. While the Court cannot give legal advice, the Court can provide general law and will do so in this case.

A Proof of Service of Summons (Judicial Council Form POS-010) must be complete and the name of the Defendant being served must match the name listed in the Complaint. The Defendants in this matter are listed as "California State Automobile Association (CSAA)" and "American Automobile Association (AAA)." When serving an entity (as opposed to an individual), Item 3.a. is where the Defendant is listed and 3.b. is where the person served on behalf of the entity is listed. It appears that the named Defendants may be corporations. If so, CCP § 416.10 would apply.

A summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods:

- (a) To the person designated as agent for service of process as provided by any provision in Section 202, 1502, 2105, or 2107 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable).
- (b) To the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process.
- (c) If the corporation is a bank, to a cashier or assistant cashier or to a person specified in

subdivision (a) or (b).

(d) If authorized by any provision in Section 1701, 1702, 2110, or 2111 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable), as provided by that provision.

CCP § 416.10

An assistant manager of a branch office in Redding, California is likely not authorized to accept service of a Summons.

It is Plaintiff's responsibility to properly serve the matter on all named Defendants and file a valid Proof of Service of Summons within 60 days of the filing of the Complaint. CRC 3.110(b). "If a party fails to serve and file pleadings as required under this rule, and has not obtained an order extending time to serve its pleadings, the court may issue an order to show cause why sanctions shall not be imposed." CRC 3.110(f). Plaintiff has not complied with CRC 3.110(b). However, as it appears that Plaintiff is making good faith efforts to effectuate service, the Court is not inclined to issue an Order to Show Cause Re: Monetary Sanctions at this time.

The Court notes that Specially Appearing Defendant CSAA Insurance Exchange has filed a Motion to Quash Service of Summons which is noticed for March 3, 2025 at 8:30 a.m. The matter is set for hearing on **Monday, March 3, 2025 at 9:00 a.m. in Department 63** for review regarding status of service and responsive pleadings. Plaintiff is ordered to comply with CRC 3.110.

PIERCY, ET AL. VS. MCINTOSH, ET AL.

Case Number: 24CV-0204617

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on December 16, 2024, to Plaintiffs Dean Piercy and Rusty Piercy, *in pro per*, for failure to timely serve pleadings on defendants pursuant to California Rules of Court, Rule 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on March 25, 2024, and no Proof of Service of Summons has been filed. Plaintiffs did not file a written response to the Order to Show Cause.

With no sufficient excuse for the delay, sanctions are imposed in the amount of \$250.00 against Plaintiffs. The clerk is instructed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal pursuant to Gov't Code Section 68608(b) for Plaintiffs' failure to timely serve Defendants per CRC 3.110(b) and failure to timely prosecute. The hearing on the Order to Show Cause Re: Dismissal is set for **Tuesday, April 1, 2025, at 8:30 a.m. in Department 63.** The clerk is instructed to prepare a separate Order to Show Cause Re: Dismissal. This matter is also calendared on **Tuesday, April 1, 2025, 2025 at 9:00 a.m. in Department 63** for review regarding status of service.

REDDING BUSINESS PARK, LLC VS. AMAZING FINDS, LLC, ET AL.

Case Number: CVCV19-0192492

Tentative Ruling on Motion for Reconsideration and/or Amend Judgment: Plaintiff Redding Business Park, LLC obtained a default judgment in the amount of \$47,073.45 on November 13, 2024. The judgment is comprised of \$28,080.00 in damages, \$16,848.00.00 in attorney's fees, and \$2,145.45 in costs. The Court did not award prejudgment interest based on Plaintiff's failure to accurately calculate interest. Plaintiff seeks reconsideration of this ruling and for prejudgment interest in the amount of \$15,444.00.

Plaintiff did not provide the legal basis for reconsideration in the moving papers. Motions for reconsideration are

generally made pursuant to CCP § 1008, however, Plaintiff did not comply with CCP § 1008 as the motion was made more than ten days after the judgment was entered. Plaintiff did not provide an affidavit as required by CCP § 1008(a). The Court also reviewed CCP § 473 to determine whether the Court could grant the relief requested pursuant to CCP § 473(b). However, CCP § 473(b) would require an application and an attorney's sworn affidavit, neither of which were provided.

As Plaintiff has failed to identify legal grounds for the relief sought and has failed to comply with the two possible statutes under which Plaintiff may have been able to obtain relief, the motion is **DENIED**. Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order.

US LBM, LLC VS. WOOLLEY, ET AL.

Case Number: 24CVG-00135

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on December 19, 2024 to Defendants Donald Franklin Woolley and The Western Surety Company and their counsel, McCarthy & Rubright, LLP for failing to appear at the review hearing on December 16, 2025. No written response was filed, however, Defendants filed a Status Conference Statement for today's 9:00 a.m. review hearing. The Order to Show Cause is **DISCHARGED**. The Court will call the matter at 9:00 a.m.

9:00 a.m. – Review Hearings

BUCKLEY, ET AL. VS. CALIFORNIA DEPARTMENT OF FORESTRY AND FIRE PROTECTION

Case Number: 23CV-0201699

This matter is on calendar for conformation of deposit of funds into blocked account. The Court notes that since this hearing was calendared, Plaintiff appeared and informed the Court that the settlement funds will be available in late February. The Court set **Monday, March 24, 2025 at 9:00 a.m. in Department 63** for review regarding confirmation of deposit. The matter is dropped from calendar and **no appearance is necessary on today's calendar**.

EDWARDS VS. TYRRELL RESOURCES, INC., ET AL.

Case Number: 23CV-0202609

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan III case and intends on setting it for trial no later than June 24, 2025. Defendants have posted jury fees. Plaintiff has waived jury by failing to post within ten days of when leave was granted on July 22, 2024. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar**.

FLORES VS. DADDARIO

Case Number: 24CV-0204188

This matter is on calendar for status of service on Defendant. The Court still has not received a valid proof of service. As Plaintiff has filed a notice of appeal with the Court of Appeal, this Court will continue the case to await a response from the Court of Appeal. The case is calendared for **Tuesday, April 1, 2025 at 9:00 am** for status of service.

FLORES VS. MILLER

Case Number: 24CV-0204648

This matter is on calendar for status of service on Defendant. The Court still has not received a valid proof of service. As Plaintiff has filed a notice of appeal with the Court of Appeal, this Court will continue the case to await a response from the Court of Appeal. The case is calendared for **Tuesday, April 1, 2025 at 9:00 am** for status of service.

FLORES VS. ADKINS**Case Number: 24CV-0204655**

This matter is on calendar for status of service on Defendant. The Court still has not received a valid proof of service. As Plaintiff has filed a notice of appeal with the Court of Appeal, this Court will continue the case to await a response from the Court of Appeal. The case is calendared for **Tuesday, April 1, 2025 at 9:00 am** for status of service.

FLORES VS. TAGGART**Case Number: 24CV-0204651**

This matter is on calendar for status of service on Defendant. The Court still has not received a valid proof of service. As Plaintiff has filed a notice of appeal with the Court of Appeal, this Court will continue the case to await a response from the Court of Appeal. The case is calendared for **Tuesday, April 1, 2025 at 9:00 am** for status of service.

HIXON, ET AL. VS. TAYLOR**Case Number: 24CV-0204361**

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than August 19, 2025. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

OREPEZA, ET AL. VS. ZAHNISER, ET AL.**Case Number: 24CV-0204398**

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than August 26, 2025. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

PRESTA VS. BOYER, ET AL.**Case Number: 24CV-0204372**

This matter is on calendar for review regarding status of the case. The Court notes that Defendant's demurrer was overruled on December 16, 2024. Per CRC 3.1320(g), the time to file an Answer was within ten days of the hearing. That time has since passed. No answer has been filed. No Request for Entry of Default has been filed. The matter was on calendar for review on January 21, 2025, and Plaintiff did not appear. The Court continued the hearing to today and Defendant was directed to provide notice. Defendant has not filed anything indicating that Defendant provided notice. **An appearance is necessary on today's calendar.**

SMITH VS. PLOTKIN**Case Number: 23CV-0202603**

This matter is on calendar for status of counsel and a trial setting conference. The Court notes that Defendant filed a document titled "Addendum to Response Filed February 15, 2024 and Motion to Dismiss." It appears that Defendant is attempting to amend her Answer and also attempting to move for a dismissal. There is no Notice of Hearing for the motion and a Motion to Dismiss is not properly before the Court. The Court notes that neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in

that time will be deemed a waiver of the right to a jury. **An appearance is necessary on today's calendar to discuss whether Defendant intends to hire counsel or if Defendant intends to proceed in pro per, in which case, the Court will set the matter for trial.**

US LBM, LLC VS. WOOLLEY, ET AL.

Case Number: 24CVG-00135

This matter is on calendar for status of the case. The Court has reviewed the Status Conference Statement filed on January 21, 2025. It is unclear whether a probate action has been filed. **An appearance by both parties is necessary on today's calendar to discuss what future date(s) should be set in this matter.**